

1.

CASE #	CASE NAME	HEARING NAME
CVRI2201122	HADDEN VS GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling: The Court DENIES the motion as untimely.

The main issue is the timeliness of Plaintiff's motion. In arguing the motion is untimely, Defendant cites to California Rules of Court, Rule 3.1702(b)(1), which states: "A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court--including attorney's fees on an appeal before the rendition of judgment in the trial court--must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case or under rules 8.822 and 8.823 in a limited civil case." The normal time limit for filing a notice of appeal (and an attorney fee motion) is 60 days after the clerk's or any party's service of notice of entry of judgment, or 180 days after the date of entry, whichever is the earliest. (CRC 8.104(a).)

Defendant also cites to a recent Fourth District Court of Appeal decision, *Hatlevig v. General Motors, LLC* (2026) 118 Cal.App.5th 644 ("*Hatlevig*"). In *Hatlevig*, the parties reached a settlement that agreed the plaintiff was the prevailing party for purposes of attorneys' fees. (*Id.* at 646.) At a trial readiness conference, plaintiff notified the court of the settlement and the court ordered a dismissal be filed within 45 days. (*Id.*) The clerk generated a "Notice of Dismissal by Court" which stated the case would be deemed dismissed without prejudice on 8/15/2023 unless a judgment or dismissal was filed or a party appeared to show good cause why the case should not be dismissed. (*Id.* at 647.) Neither event occurred by 8/15/2023. (*Id.*)

On 8/31/2023, the *Hatlevig* plaintiff filed a motion for attorneys' fees and in opposition, General Motors argued the motion was untimely because it had not been served within 180 days of the date of settlement, citing to California Rules of Court, Rule 3.1702(b)(1). (*Id.*) The trial court denied the motion, agreeing with General Motors that it was untimely because the case was dismissed on 8/15/2023 and the plaintiff filed the motion more than 180 days thereafter. (*Id.*)

The Fourth District affirmed, agreeing that the "event" that "started the clock running" is the conclusion of the litigation on its merits on 8/15/2023. (*Id.* at 649.) The Fourth District stated, "Rule 3.1702 does not require an appealable order or judgment even though it uses 'the time for filing a notice of appeal' to set the deadline for serving and filing a motion for attorney fees" and that, "A voluntary dismissal, though not appealable, starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees." (*Id.* [citations omitted].) The court recognized that the actual dismissal order was not filed until 6/17/2024, when the trial court signed a minute order dismissing the operative complaint without prejudice, but stated that date was "...not the date of dismissal for purposes of starting the clock running on the time *Hatlevig* had to move for attorney fees." (*Id.* at 650.) The

Fourth District noted that Hatlevig implicitly acknowledged the case had been dismissed by filing its motion for attorneys' fees on 8/31/2023 – but failing to serve it until two months later. (*Id.*) The court thus upheld the trial court's denial of the motion for attorneys' fees because 180 days after the dismissal was 2/11/2024, and while Hatlevig filed the motion before that date, it was not served until after the 180-day deadline expired. (*Id.*)

A similar timeline and procedural history are seen in this case. On 9/6/2023, Plaintiff filed a notice of settlement of the entire case. On 9/7/2023, the court issued a Notice of Order to Show Cause re: Dismissal After Conditional Settlement. After several continuances, on 2/9/2024, Plaintiff's counsel appeared in court and the parties requested the case be dismissed without prejudice. Under *Hatlevig*, 2/9/2024 is the date the clock began to run for Plaintiff to file the motion for attorneys' fees – which makes 8/7/2024 the deadline by which Plaintiff needed to bring this motion. Plaintiff filed the motion on 3/4/2026, well past the deadline.

Plaintiff's arguments in opposition are without merit. Plaintiff argues *Madrigal v. Hyundai Motor America* (2023) 90 Cal.App.5th 385 controls. However, *Madrigal* involves the interpretation of the cost-shifting provisions under CCP § 998 and does not address the filing deadlines for fee motions under Rules 3.1702 or 8.104. Moreover, Plaintiff failed to file the CCP § 998 Offer or enter judgment thereunder. Rather, Plaintiff appeared at the 2/9/2024 hearing and agreed to have the case dismissed – implicitly acknowledging the end of the litigation on its merits and the dismissal as in *Hatlevig*.

Plaintiff also argues that the court's retention of jurisdiction under CCP § 664.6 and the lack of a final judgment means the 180-day clock has not started. But this is entirely inapposite to the ruling in *Hatlevig* that makes clear Rule 3.1702 "...does not require an appealable order or judgment" to begin the deadline for serving and filing a motion for attorneys' fees. (*Hatlevig, supra*, 118 Cal.App.5th at 649.)

For these reasons, the Court DENIES the motion as untimely.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2500380	YANG VS BMW OF NORTH AMERICA, LLC	MOTION TO COMPEL THE DEPOSITION OF DEFENDANT'S PERSON MOST KNOWLEDGEABLE AND PRODUCTION OF DOCUMENTS AND REQUEST FOR SANCTIONS

Tentative Ruling: No tentative ruling; the Court requests appearances either in person or telephonically.